PROCLAMATION

by

HIS EXCELLENCY THE HONOURABLE EMMERSON DAMBUDZO MNANGAGWA, G.C.Z.M., President of Zimbabwe and Commander-in-Chief of the Defence Forces of Zimbabwe;

WHEREAS section 187(1) of the Constitution of Zimbabwe, provides that, a judge may be removed from office only for inability to perform the functions of his or her office, due to mental or physical incapacity; gross incompetence; or gross misconduct;

AND WHEREAS section 187(3) of the Constitution of Zimbabwe provides that, if the Judicial Service Commission advises the President that the question of removing a judge, from office ought to be investigated, the President must appoint a tribunal to inquire into the matter;

AND WHEREAS the Judicial Service Commission, by letter dated 14th October, 2025, formally advised the President that the question of removal from office of the Honourable Mr. Justice Never Katiyo, ought to be investigated;

AND WHEREAS section 187(4) of the Constitution of Zimbabwe, provides that, the President may, when he considers it advisable, appoint a tribunal consisting of at least three (3) members;

AND WHEREAS section 187(9) of the Constitution of Zimbabwe, provides that, a tribunal appointed under section 187 has the same rights and powers as commissioners under the Commissions of Inquiry Act [*Chapter 10:07*], or any law that replaces that Act;

AND WHEREAS the President may authorise the Tribunal or Members or any quorum of them specified in the proclamation into any matter in which any inquiry would, in the opinion of the President, be of public welfare:

NOW, THEREFORE, under and by virtue of the powers vested in the President as aforesaid, I do, by this proclamation—

(a) establish a Tribunal to inquire into the question of removal from office of the Honourable Justice Never Katiyo;

(b) appoint Retired Justice Maphios Cheda; as Chairperson of the Tribunal;

(c) appoint the Permanent Secretary for Justice, Legal and Parliamentary Affairs to be the Secretary to the Tribunal;

(d) direct that the Tribunal shall be held for a period of five (5) months from the date of swearing in of Members, at such appropriate venue as shall be determined by the Tribunal;

(e) direct that the report shall be availed at least thirty (30) days after the conclusion of the inquiry;

(f) direct that the Terms of Reference shall be as follows—

(i) to investigate into the matter of the removal from office of Honourable Justice Never Katiyo;

(ii) to investigate into the matter of Honourable Justice Never Katiyo's conduct, whether it can be deemed to have been tantamount to gross misconduct;

(iii) to investigate whether or not the Honourable Justice Never Katiyo—

A. handed down judgement in the matter of Technoimpex JSC *versus* Rajendrakumar Jogi and Others HCH6784/19 on a date which was before the scheduled set down date;

B. handed down the said judgement in the absence of submissions from legal practitioners representing the parties;

C attributed submissions to named Advocates as if they had appeared before him when that did not happen at all;

D. convened a case management meeting after receiving a complaint from the parties and

during this meeting, he went on to alter the date of judgement from 4th July, 2025, to 28th July, 2025;

E. altered the date of judgement in order to spare the party intending to appeal against the judgement the need to file an application for condonation for late noting of appeal;

F. further, went on to rescind the judgement purporting that it had been erroneously entered;

G. tried to defeat the investigations after receiving the memorandum from the Chief Justice by rescinding the judgement he had passed;

H. in case No. HCHCR4331/25, granted an application for leave to Appeal which had been filed by the National Prosecuting Authority (NPA) before the expiry of the *dies inducia*e for the respondents to file their opposing papers;

I. reserved judgement in case No. HCH2524/22 on 7th November, 2024 and after the lapse of nine (9) months according to the Code of Ethics he still had not handed down the judgement;

(iv) to consider all information submitted by the Judicial Service Commission in order to arrive at an appropriate recommendation to the President;

(v) to investigate any other matter which the Tribunal may deem appropriate and relevant to the question of removal from office of a Judge in terms of the law;

(vi) to recommend on whether the Honourable Judge, is fit to hold office in the light of the foregoing;

(vii) to report to the President, in writing, the result of the inquiry within a period of one (1) month from the date of conclusion of the hearing;

(g) direct that the inquiry shall be held both in public, or privately, as the exigencies of the Tribunal may determine; and

(h) appoint the Members listed in the Schedule.

SCHEDULE

APPOINTMENT OF MEMBERS TO THE TRIBUNAL

1. Retired Justice Maphios Cheda, (Chairperson)
2. Mr Tafadzwa Hungwe
3. Mr Chaka Mashoko

Given under the hand and the Public Seal of Zimbabwe at Harare this 13th day of March, in the year of our Lord two thousand and twenty-six.

E. D. MNANGAGWA,
President.

By Command of the President.

Supplement to the Zimbabwean Government Gazette dated the 13th March, 2026.
Printed by the Government Printer, Harare.